

In a limited civil case where there is a money judgment, the judgment shall be paid immediately unless otherwise prescribed by the court. Code Civ. Proc. § 582.5. Upon motion by a party, the court may provide for payment through installments where there is good cause. *Id.* The moving party does not need to have appeared before the court prior to the entry of the judgment in order to seek an order for payment by installments. *Id.*

Here, the Murillo Declaration details Judgment Debtor's financial information. Based on this, Judgment Debtor has a monthly take-home pay of \$6,887.32. Murillo Declaration, ¶15 *et seq.* This leaves a monthly surplus of \$577.32 after expenses. See *id.* at ¶¶15-7. Judgment Debtor also states that he/she is financially supporting his/her mother who recently underwent surgery. *Id.* at ¶18 *et seq.*

In the Opposition, Judgment Creditor highlights several discrepancies in the Murillo Declaration. Most notably, the calculation of Judgment Debtor's take-home pay is erroneous. A total payroll deduction of \$4,807.12 is reported, however the actual sum of the individual payroll expenses is \$3,682.28. Opposition, p. 3; see Murillo Declaration, ¶15. This indicates a monthly take-home pay of \$8,012.16 as opposed to the \$6,887.32 set forth in the Murillo Declaration. *Id.* After expenses, this yields a monthly surplus of \$1,702.16. The Court's calculations match those of the Judgment Creditor in the Opposition. See Opposition, p. 3.

In light of the above, the Court, in its discretion and for good cause shown, GRANTS IN PART the Motion to Pay Installments. Judgment Debtor will be permitted to pay the Judgment Amount in monthly installments. However, considering the larger monthly surplus, the installments shall be in the amount of \$415, payable on the 10th of each month. The Court finds this amount just and reasonable given Judgment Debtor's financial circumstances. The first payment shall be due August 10, 2026.

Disposition

The Court hereby finds and orders as follows:

1. The Motion to Pay Installments is GRANTED IN PART. Judgment debtor shall pay the Judgment Amount in monthly installments of \$415, payable on the 10th of each month. The first payment shall be due August 10, 2026.
2. The Court will issue the order after hearing.

13. 9:00 AM CASE NUMBER: MSC20-00271
CASE NAME: MENASCO VS KILARR
***HEARING ON MOTION IN RE: ATTORNEYS FEES MOTION FILED TO/FOR**
FILED BY:
TENTATIVE RULING:

Parties to Appear.

14. 9:00 AM CASE NUMBER: N26-0447
CASE NAME: PETITION OF:QUALITY LOAN SERVICE CORP.
HEARING ON PETITION IN RE: PETITION FOR RELEASE OF SURPLUS FUNDS
FILED BY: QUALITY LOAN SERVICE CORP.

TENTATIVE RULING:

The matter is on calendar for determination of Petitioner Quality Loan Service Corp.'s ("Petitioner") Petition and Declaration regarding Unresolved Claims and Deposit of Undistributed Surplus Proceeds of Trustee's Sale filed on March 10, 2026 (the "Petition"). The matter was set for hearing on July 30, 2026.

Background

As set forth in the Petition, the sum of \$240,079.27 remained undistributed following a trustee's sale held on or about June 2, 2025. That amount was ordered deposited with the Clerk of the Court (the "Deposited Funds"). See Order entered April 23, 2026 (the "Order for Deposit of Surplus Funds").

Thereafter, the Court set and noticed this hearing on the Petition. See Notice of Hearing dated June 3, 2026.

Analysis

No further filings have been made by any party or third party. No written claims have been filed or otherwise presented before the Court with respect to the Deposited Funds.

Prior to the deposit, no written claims had been received by the trustee as to the Deposited Funds. See Petition, ¶9.

Notice was duly given pursuant to Civil Code section 2924j(a)-(c).

The Court finds that all known potential claimants have been given notice at their last known addresses and other potential addresses identified by Petitioner.

No party entitled to the funds has sought to claim them.

Therefore, the funds are to remain on deposit with the Court for a three-year period prior to escheatment. See Gov. Code § 68084.1(a) ("Except as otherwise provided by law, any money, excluding restitution to victims, that has been deposited with a superior court, or that a superior court is holding in trust for the lawful owner, in a court bank account or in a court trust account in a county treasury, that remains unclaimed for three years shall become the property of the superior court . . ."). Any interested party may file a claim with the Court's executive officer for all or a portion of the Deposited Funds prior to escheatment. Gov. Code § 68084.1(c); Civ. Proc. §§ 1300 *et seq.*

The Court's executive officer shall provide notice pursuant to Government Code section 68084.1(b) prior to escheatment.

Disposition

The Court finds and rules as follows:

1. The Deposited Funds are to remain on deposit with the Court pursuant to Government Code section 68084.1(a) *et seq.*
2. The Court to prepare the order after hearing.